

1 SUPREME COURT OF THE STATE OF NEW YORK
2 COUNTY OF NEW YORK

Index No.:
Date Purchased:

3 JOSE OVALLE.

4 Plaintiff,

5 vs.

6 CITY OF NEW YORK AND POLICE OFFICER MICHAEL FIGUEROA,
7 SHIELD NO. 4760,
8 Defendants.

SUMMONS

Plaintiffs designate New York County
as the place of trial.

The basis of venue is:
Plaintiff's address:
155 Audubon Avenue #6D
New York, NY 10032

9 To the above named Defendants:

10 You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if
11 the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within
12 twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery
13 upon you personally within the state, or, within 30 days after completion of service where service is made in any
14 other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief
15 demanded in the complaint.

16 Dated: New York, New York
17 February 15, 2016

18 ~~STEVEN ADAM RUBIN & ASSOCIATES, PLLC~~
19 ~~STEVEN ADAM RUBIN~~
20 ~~Attorneys for Plaintiff~~
21 ~~71 West 23 Street, Suite 1623~~
22 ~~New York, New York 10010~~
23 ~~212-643-5402~~

24 TO: Zachary Carter, Esq.
25 CORPORATION COUNSEL
Attorneys for CITY OF NEW YORK and The New York City Police Department
100 Church Street
New York, New York 10007

POLICE OFFICER MICHAEL FIGUEROA, SHIELD NO. 4760
33 PRECINCT
2207 Amsterdam Ave
NEW YORK, NY 10032

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JOSE OVALLE

Plaintiff,

vs.

CITY OF NEW YORK AND POLICE OFFICER MICHAEL FIGUEROA,
SHIELD NO. 4760,

Defendants

Index No.:

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VERIFIED COMPLAINT

Plaintiff by his attorneys Steven Adam Rubin & Associates, PLLC for his complaint herein, upon information and belief, respectfully alleges:

1. At all times hereinafter mentioned, plaintiff is natural person residing in the county, City and State of New York.
2. Upon information and belief, defendant THE CITY OF NEW YORK was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. Upon information and belief, at all times hereinafter mentioned, defendant the CITY OF NEW YORK, by its agents, servants and/or employees operated and maintained a police force known as the NEW YORK CITY POLICE DEPARTMENT, the headquarters of which are located at One Police Plaza, New York, New York.
4. Defendant PO MICHAEL FIGUEROA, Shield No. 4760 is a natural person; was and is a member and employee of the New York City Police Department.
5. That plaintiff has complied with all the conditions precedent to the bringing of this action, and within ninety (90) days after the date of the occurrence herein, on September 23, 2015 and December 23, 2015, plaintiff duly served written notices of claim upon the Comptroller of the CITY OF NEW YORK, pursuant to law, said notices being verified by oath of plaintiff and/or his representative, specifying his intention to sue by commencing an action against the defendant, CITY OF NEW YORK and defendant POLICE OFFICER MICHAEL FIGUEROA for false arrest, false imprisonment, malicious prosecution, violation of civil rights, assault and battery, personal injuries and negligently hiring, training,

1 supervising of their employee Police Officers, including, but not limited to defendant FIGUEROA
2 involved in the arrest and battery of Plaintiff JOSE OVALLE on or about September 21, 2015.

3 6. That a hearing, pursuant to General Municipal Law Section 50-H was held on February 9, 2016 with
4 plaintiff JOSE OVALLE.

5 7. That this action is brought within one year after the said occurrence and that more than thirty days
6 have elapsed since service of such notices of claim and said claims remain unadjusted and
7 defendants refuse to make any adjustment of same.

8 8. At all times hereinafter stated, defendants failed to remedy same as required by Section 7-201 of the
9 Administrative Code of the City of New York.

10 9. That at all times hereinafter mentioned, defendant POLICE OFFICER MICHAEL FIGUEROA, SHIELD
11 NO. 4760 was acting during the course of his employment for the business uses and purposes of, and
12 within the scope of his employment with the Police Department of the City of New York and of the
13 defendant, CITY OF NEW YORK.

14 FIRST CAUSE OF ACTION

15 10. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the above
16 paragraphs with the same force and effect as if more fully set forth herein.

17 11. That on September 21, 2015, Defendants the CITY OF NEW YORK and its employees, agents
18 and/or servants, specifically defendant POLICE OFFICER MICHAEL FIGUEROA, SHILED NO. 4760
19 AND NEW YORK CITY POLICE OFFICERS "JOHN DOE 1-8" SAID POLICE OFFICERS TRUE
20 NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE
21 THOSE POLICE OFFICERS, unlawfully, illegally, unjustifiably, intentionally, maliciously, wantonly,
22 recklessly, and without probable cause, reason or justification; arrested and detained plaintiff JOSE
23 OVALLE.

24 12. That the aforesaid arrest and confinement of plaintiff was caused solely and wholly through and by
25 reason of the culpable acts and conduct of the defendants their agents, servants and/or employees
acting under their employment and within the scope of their authority without any warrant or other

1 legal process and without authority of the law and without any reasonable cause or belief that the
2 plaintiff had committed any crime and with no culpable conduct on the part of the plaintiff contributing
3 thereto.

4 13. That by reason of the aforesaid, the plaintiff was confined for a period of approximately two hours.

5 14. That the plaintiff was conscious of his confinement.

6 15. That the plaintiff did not consent to his confinement.

7 16. The confinement of the plaintiff by members/employees, agents and servants of defendant CITY OF
8 NEW YORK was not privileged.

9 17. That by reason of the false arrest, imprisonment and detention of the plaintiff, plaintiff was denied his
10 liberty, and caused to sustain serious, severe and painful mental injuries together with humiliation,
11 ridicule, degradation of his good character and damage to his good name, and he became
12 incapacitated and was unable to attend to his usual duties.

13 18. This action falls within one or more of the exemptions set forth in CPLR §1602.

14 19. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

15 **SECOND CAUSE OF ACTION**

16 20. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above paragraphs
17 with the same force and effect as if more fully set forth herein.

18 21. That on September 21, 2015, defendant CITY OF NEW YORK, its agents, servants and/or
19 employees, specifically POLICE OFFICER MICHAEL FIGUEROA, SHILED NO. 4760 AND NEW
20 YORK CITY POLICE OFFICERS "JOHN DOE 1-8" SAID POLICE OFFICERS TRUE NAMES BEING
21 UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE THOSE POLICE
22 OFFICERS, unlawfully, illegally, unjustifiably, intentionally, maliciously, wantonly, recklessly, and
23 without probable cause, reason or justification battered and assaulted plaintiff herein.

24 22. That by reason of the aforesaid, the plaintiff sustained severe and permanent personal injuries.

25 23. This action falls within one or more of the exemptions set forth in CPLR §1602.

24. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

25. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above paragraphs with the same force and effect as if more fully set forth herein.

26. That on September 21, 2015, Defendants CITY OF NEW YORK, its agents, servants and/or employees, specifically POLICE OFFICER MICHAEL FIGUEROA, SHILED NO. 4760 AND NEW YORK CITY POLICE OFFICERS "JOHN DOE 1-8" SAID POLICE OFFICERS TRUE NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE THOSE POLICE OFFICERS,, unlawfully, illegally, unjustifiably, intentionally, maliciously, wantonly, recklessly, and without probable cause, reason or justification battered and used excessive force to effectuate the detention and arrest of plaintiff herein.

27. That by reason of the aforesaid, the plaintiff sustained severe and permanent personal injuries and damages.

28. This action falls within one or more of the exemptions set forth in CPLR §1602.

29. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above paragraphs with the same force and effect as if more fully set forth at length herein.

31. Defendant CITY OF NEW YORK, its agents, servants and/or employees, acting within the scope of their employment did negligently hire, retain, train and supervise Individuals who were unfit for the performance of police duties on September 21, 2015 including, but not limited to defendant POLICE OFFICER MICHAEL FIGUEROA, SHILED NO. 4760 AND NEW YORK CITY POLICE OFFICERS "JOHN DOE 1-8" SAID POLICE OFFICERS TRUE NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE THOSE POLICE OFFICERS, .

32. That by reason of the aforesaid, the plaintiff sustained severe and permanent personal injuries and damages.

33. This action falls within one or more of the exemptions set forth in CPLR §1602.

34. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above paragraphs with the same force and effect as if more fully set forth at length herein. .

36. That on September 21, 2015, defendant POLICE OFFICER MICHAEL FIGUEROA, SHILED NO. 4760 AND NEW YORK CITY POLICE OFFICERS "JOHN DOE 1-8" SAID POLICE OFFICERS TRUE NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE THOSE POLICE OFFICERS, , falsely executed two written summons wherein Plaintiff was charged with violating Penal Law Sections 240.20(1)(4), Disorderly Conduct.

37. That on September 21, 2015, plaintiff was falsely arrested, by the aforementioned POLICE OFFICER, MICHAEL FIGUEROA, SHILED NO. 4760 AND NEW YORK CITY POLICE OFFICERS "JOHN DOE 1-8" SAID POLICE OFFICERS TRUE NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE THOSE POLICE OFFICERS, agents, servants, and/or employees of the defendant, CITY OF NEW YORK, for the aforementioned violations of the Penal Law of the State of New York.

38. That following the aforementioned arrest of the plaintiff on September 21, 2015, plaintiff was unlawfully detained and imprisoned for a period of approximately two hours.

39. That said defendant POLICE OFFICER MICHAEL FIGUEROA, SHILED NO. 4760 AND NEW YORK CITY POLICE OFFICERS "JOHN DOE 1-8" SAID POLICE OFFICERS TRUE NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE THOSE POLICE OFFICERS, , having the real apparent ability to cause imminent harmful and offensive bodily contact and the power and authority to arrest and detain the plaintiff did so and forcibly detained plaintiff and falsely arrested him.

1 40. That the acts of forcibly detaining plaintiff using excessive force to arrest him and falsely arresting him
2 deprived plaintiff of his rights and liberties as set forth in the Constitutions of the United States and of
3 the State of New York, without any conduct on the part of plaintiff to so warrant to wit:

- 4 a. In that all of the actions of the defendants, their agents, servants and employees, were
5 committed with the intention to cause bodily and mental injury to the plaintiff, to arrest,
6 restrain and imprison the plaintiff without his consent, the plaintiff was at all times
7 conscious of his arrest, did not consent to the false arrest and imprisonment, and said
8 actions were not otherwise privileged; and
- 9 b. The arrest and imprisonment were not justified by probable cause or other legal privilege;
10 defendants, their agents, servants and employees, acting under color of statute,
11 ordinances, regulations, customs and usages of the State and City of New York, County
12 of New York, and under the authority of their office as police officers for said County.
- 13 c. That the defendant(s), its agents, servants and employees failed to adequately and
14 properly hire, retain, train, supervise, discipline or in any other way control the behavior
15 and performance of the defendants, their agents, servants and employees; that in their
16 hiring practices in the exercise of their police functions and their failure to enforce the laws
17 of the State and City of New York is evidence of the reckless lack of cautious regard for
18 the rights of the public including plaintiff; in that they exhibited a lack of that degree of due
19 care which prudent and reasonable individuals would show in executing the duties of the
20 defendants; and
- 21 d. The failure of the defendants, its agents, servants and employees to hire, train, supervise,
22 discipline or in any other way control the defendants, in the exercise of their functions; in
23 that their failure to enforce the laws of the state of New York and The City of New York
24 was and is carried out willfully, wantonly, maliciously and with such reckless disregard for
25 the consequences so as to display a conscious disregard for the dangers of harm and
injury to the citizens of the State and City of New York including plaintiff; and

1 e. Due to the acts of the defendants, it agents, servants and employees herein to discipline
2 and properly hire the defendants and the continued employment of the defendants,
3 agents, servants and employees presents a clear and present danger to the citizens of
4 the City and State of New York, County of Bronx; and

5 f. That the said arrest of plaintiff was procured by the defendants, their agents, servants and
6 employees in this action unlawfully. That the commencement and/or continuation of
7 plaintiff's detention by the defendants was without probable cause and with actual malice;
8 and

9 g. That the defendants, its agents, servants and employees permitted the use of policy
10 and/or drafted policy that was violative of the Constitutional rights of plaintiff; and in that
11 each all of the acts of the defendants, their agents, servants and employees alleged
12 herein, were done not as individuals but under the color and pretense of the statutes,
13 ordinances, regulations, customs and usages of the State of New York, City of New York
14 and County of New York,, and under the authority of their office as police officers.

15 41. Defendants did not have probable cause to arrest plaintiff, and said act deprived plaintiff of his
16 Constitutional rights as set forth in the Constitution of the United States and the Constitution of the
17 State of New York.

18 42. As a direct result of the illegal actions and conduct on the part of the defendants, their agents,
19 servants and employees, plaintiff was falsely arrested and imprisoned.

20 43. That at all time hereinafter mentioned, defendants, their agents, servants and/or employees,
21 specifically members of the New York City Police Department were acting under the color of their
22 official capacity and their acts were performed under the color of the policies, statutes, ordinances,
23 rules and regulations of the City of New York and State of New York.

24 44. Said agents, servants and/or employees, specifically members of the New York City Police
25 Department acting under the color of law, have subjected plaintiff and other persons to a pattern of
conduct consisting of false imprisonment and arrest at the time said person was lawfully and properly

1 on public property in the City and State of New York, County of Bronx, in denial of rights, privileges
2 and immunities guaranteed plaintiff and other citizens by the Constitution of the United States and the
3 State of New York.

4 45. Plaintiff was specifically targeted, battered and arrested because he was attempting to record the
5 conduct of defendant Police Officer and other New York City Police Officers.

6 46. This systemic pattern of conduct consists of a large number of false arrest and false imprisonment and
7 negligence visited upon plaintiff and other citizens by defendants and under color of law, and while
8 carried out under color of law, have no justification or excuse in law and are instead illegal, improper
9 and unrelated to any activity in which police officers may appropriately and legally engage in the
10 course of protecting persons or property or ensuring civil order.

11 47. That plaintiff's civil and constitutional rights were violated as a result of an official or unofficial custom
12 including but not limited to policies and customs concerning the investigative procedures conducted
13 before the effectuation of an arrest and the hiring, training, supervision, retention and discipline of the
14 CITY OF NEW YORK, its agents, servants and/or employees who are responsible of conducting said
15 investigative tasks.

16 48. That defendant the CITY OF NEW YORK encouraged, approved, and/or tolerated the use of
17 misconduct involving false arrests and false imprisonments against civilians, especially regarding
18 civilians engaged in the recording of police conduct and misconduct.

19 49. This systemic pattern of conduct consists of the use of excessive force while effectuating an arrest
20 visited upon plaintiff and other citizens by defendants and under color of law, and while carried out
21 under color of law, have no justification or excuse in law and are instead illegal, improper and
22 unrelated to any activity in which police officers may appropriately and legally engage in the course of
23 protecting persons or property or ensuring civil order.

24 50. That plaintiff's civil and constitutional rights were violated as a result of an official or unofficial custom
25 including but not limited to policies and customs concerning the use of excessive force while
effectuating and arrest; and the official or unofficial custom or policy of arresting and detaining of

1 civilians who record police conduct and police misconduct, and the hiring, training, supervision,
2 retention and discipline of the CITY OF NEW YORK, its agents, servants and/or employees who take
3 part in effectuating arrests.

4 51. That defendant the CITY OF NEW YORK encouraged, approved, and/or tolerated the use of
5 excessive force while effectuating the arrest; as well as tolerating the arrest of Plaintiff because he
6 was engaged in recording the police conduct..

7 52. That defendant the CITY OF NEW YORK encourage, approve and/or tolerate attempts by the police
8 officers and the New York City Police Department to conceal misconduct.

9 53. Although defendants, their agents, servants and/or employees knew or should have known the fact
10 that the aforementioned patterns of conduct are carried out by their agents, servants or employees,
11 said defendants have not taken any steps or made any efforts to halt this course of conduct, to make
12 redress to the plaintiff or other citizen injured thereby, or to take any disciplinary action whatever
13 against any of their agents, servants or employees.

14 54. The unlawful and illegal conduct of the defendants, their agents, servants and employees and each of
15 them, deprived plaintiff of the following rights, privileges and immunities secured to him by the
16 Constitutions of the United States and the State of New York:

- 17 a. The right of plaintiff to be secure in his home
- 18 b. The right of plaintiff to be secure of his person
- 19 c. The right of plaintiff not to be deprived of life, liberty or property without due process of
20 law.
- 21 d. The right of equal protection under the laws of United States of America.

22 55. That by reason of the aforesaid violations, false arrest and false imprisonment, by the defendants,
23 their agents, servants and employees who conspired together to wrongly deprive plaintiff of his rights
24 and privileges as provided to him in the Constitution of the United States and the New York State
25 Constitution, plaintiff was deprived of his liberty, and was subjected to and caused to suffer great pain,
indignity, humiliation, and great distress of mind and body and was held up to scorn and ridicule, was

injured in his character and reputation, was prevented from attending his usual business and avocation, and the said plaintiff has been otherwise damaged.

56. This action falls within one or more of the exemptions set forth in CPLR §1602.

57. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

58. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above paragraphs with the same force and effect as if more fully set forth at length herein.

59. That on or about September 21, 2015, subsequent to the arrest of plaintiff, defendants THE CITY OF NEW YORK and POLICE OFFICER MICHAEL FIGUEROA, SHILED NO. 4760 their agents, servants and employees acting under their employment and within the scope of their authority maliciously prosecuted and detained plaintiff, without any just right or grounds therefore;

60. That plaintiff was and is wholly innocent, and was forced by the defendants to submit to Court proceedings;

61. That the defendant THE CITY OF NEW YORK and POLICE OFFICER MICHAEL FIGUEROA, SHILED NO. 4760, their agents, servants and employees falsely and maliciously and without probable cause or provocation arrested plaintiff and served various summons and/or tickets requiring Plaintiff to return to Court;

62. That the aforesaid commencement and/or continuation of the charges and prosecution were instituted and procured by defendant THE CITY OF NEW YORK and POLICE OFFICER MICHAEL FIGUEROA, SHILED NO. 4760, their agents, servants and/or employees acting under their employment and within the scope of their authority, unlawfully, with actual malice and without any probable cause, reason or justification and without authority of the law and without any reasonable cause or belief that the plaintiff had committed any crime, or had acted disorderly pursuant to Penal Law 240.20, and with no culpable conduct on the part of the plaintiff contributing thereto.

63. That said charges were falsely and maliciously made.

64. That the case against plaintiff was dismissed on or about November 13, 2015.

65. That the said prosecution and disorderly conduct charges were instituted and procured by the defendants THE CITY OF NEW YORK and POLICE OFFICER MICHAEL FIGUEROA, SHILED NO. 4760, their agents servants and employees in this action unlawfully and maliciously and without any reasonable or probable cause whatsoever.

66. That by reason of the aforesaid unlawful and malicious prosecution plaintiff was deprived of his liberty, and was subjected to and caused to suffer great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and vocation, and the said plaintiff has been otherwise damaged.

67. This action falls within one or more of the exemptions set forth in CPLR §1602.

68. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants herein on all causes of action, in an amount exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
February 15, 2016

Yours etc.
STEVEN ADAM RUBIN & ASSOCIATES, PLLC

BY: STEVEN ADAM RUBIN, ESQ.
71 West 23 Street, Suite 1623
New York, NY 10010
212-643-5402

VERIFICATION BY AFFIDAVIT

STATE OF NEW YORK

ss:

COUNTY OF NEW YORK

JOSE OVALLE, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED: New York, New York
February 17, 2016

Jose Ovalle
JOSE OVALLE

Sworn to before me this
17 day of February, 2016

Notary Public

STEVEN A. RUBIN
Notary Public, State of New York
No. 028115019531
Qualified in New York County
Commission Expires October 25, 2018

c/8/18

Index No:
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Plaintiff,

vs.

CITY OF NEW YORK AND POLICE OFFICER MICHAEL FIGUEROA, SHIELD NO.: 4760
Defendants

LAW OFFICE OF
STEVEN ADAM RUBIN & ASSOCIATES, PLLC
Attorneys for Plaintiff
JOSE OVALLE
71 West 23rd Street, Suite 1623
New York, NY 10010
(212) 643-5402

ATTORNEY'S CERTIFICATION

STATE OF NEW YORK COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, does hereby certify, pursuant to 22NYCRR 130-1.1 certifies that upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: February 19, 2016

NOTICE OF ENTRY OR SETTLEMENT

PLEASE TAKE NOTICE that an order

NOTICE OF ENTRY

of which the within is a (true) (certified) copy of a
within named court on 2016.

duly entered in the office of the clerk of the

NOTICE OF SETTLEMENT

will be presented for settlement to the Hon.

One of the judges of the within named

Court, at on 2016 at o'clock M.

Dated: February 19, 2016

Yours etc.,

STEVEN ADAM RUBIN, ESQ.